

Our ref: ksl/ln89320/0001/ksl
Your ref: CP.ZAH003.1

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22 June 2022

Ms C Park
Hughes Fowler Carruthers

By email only: c.park@hfclaw.com

Dear Caroline

**Nadia Zahmoul and Karim Zahmoul - Finances
Crypto deficiencies and Imerman documents**

I write further to my email of 13 June 2022 and my letter of 21 June 2022 and with reference to Diana's letter of 20 May 2021.

In circumstances where our clients were preparing for than FDR and exploring the possibility of reaching a mediated settlement, Diana agreed that your firm's review of the following *Imerman* material could be suspended, pending the outcome of those discussions:

1. the laptop computer used by Jade Mia;
2. the one-touch device #1 containing a backup of that computer and material relating to your client's trip to Essex and Ealing; and
3. a hard drive of the computer made by your client.

Diana's letter was specific to reserve my client's right to request that this review be resumed in the event that the parties were unable to reach a settlement. Your client's attitude to his disclosure in relation to his crypto currency holdings, and the other general deficiencies in his disclosure (which I will write to you about separately), together with his historic and continuing lack of candour in relation to the presentation of his financial resources gives my client serious cause for concern and it is appropriate now for that review to be completed, as is required by the guidance in *Imerman* and *UL v BK*. Given the current state of play and the timescales, this review needs to be carried out as a matter of urgency. In so far as any documentation relates to digital assets held by your client, it will need to be provided to an independent expert to review.

This review is not optional for your client. My client agreed to suspend it last year in the hope that a settlement might be capable of being reached but I should remind you of the particular paragraph in *UL v BK* which reads:

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e-mail: katharine.landells@withersworldwide.com

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22 June 2022

HFC

The husband's solicitor, who owes a high duty to the court, will read [the Imerman documents] and disclose those of them that are both admissible and relevant to the wife's claim, pursuant to the husband's duty of full and frank disclosure.

I look forward to hearing from you as a matter of urgency that your client agrees that this exercise will now be completed.

Yours sincerely

A handwritten signature in blue ink, appearing to be 'K Landells', written over a horizontal line.

Katharine Landells
on behalf of Withers LLP



Your ref: dcp/slf/ln89320/0001/mqc

Our ref: CP.ZAH003.I

Kate Landells
Withers
DX 160 London/Chancery Lane

25 February 2022

By email only: Katharine.Landells@withersworldwide.cc

Dear Kate

Nadia Zahmoul and Karim Zahmoul – finances

I write in advance of the hearing on 4 March 2022.

Outstanding requests

Please now provide as previously requested on multiple occasions:

- a) An evidenced breakdown of costs incurred by your client with Taylor Wessing;
- b) An evidenced breakdown of the costs incurred by your client with Hazlewoods;
- c) Evidence of what is currently outstanding with Taylor Wessing and her accountants.

The only outstanding matter in respect of tax is for your client to provide details of the base cost / gains / losses in respect of the investments held / previously held within her Fidelity portfolio. This was requested on 5 November 2021 and promised on 18 November 2021, but it is yet to be provided.

Please confirm this is agreed and will be provided prior to the hearing or included in the Order. If not, it will need to be considered by the Court.

New requests

Separately my client would like the release of undertakings / permission of the Court in respect of:

- a) The return of his homemade computer, currently held by my firm – he is content for this to be returned to your client's home so that the girls can use this to improve their computer skills – he just considers it a waste to be sitting in an office when the girls could use it. For

the avoidance of doubt, I am referring to the device on the left of the enclosed photo. Please confirm;

- b) The partial discharge of the BOJH mortgage using the funds in the BOJH accounts. My client suggests \$600,000 is discharged from the total of c.\$650,000 in the joint accounts. The interest rate is c.3% per annum so it is wasteful for these funds to be sitting in a current account.

Please confirm both of the above is agreed. If not, it will need to be considered by the Court.

Yours sincerely

A handwritten signature in black ink, appearing to read 'Caroline Park', is written over a light grey rectangular background.

CAROLINE PARK

Enc.

